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TAM CAPITAL

BOARD AUDIT COMMITTEE CHARTER

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1. Purpose of the Committee

The Board Audit Committee (hereinafter referred to as the "Committee", “Audit Committee”, “BAC” or “AC”) serves as a sub-committee to the Board of Directors of Tam Capital (“Company”), formed to represent and assist the Board in fulfilling its oversight responsibilities relating to:

1. Shareholders, potential shareholders, the investment community and others relating to the financial reporting process;

2. The system of Internal Controls;

3. The external and internal audit process;

4. Company’s financial statements;

5. Related parties transactions and conflict of interests’ cases; and

6. Tam Capital’s process for monitoring compliance with applicable laws and regulations and the Code of Conduct.

The objective of this Charter is to regulate the Audit Committee function through determining its duties, authorities, meeting procedures, members’ selection and other matters, in accordance with the regulatory requirements and best practice procedures for audit committees.

2. Authority

The Board Audit Committee is authorized to:

- Approve and recommend matters within its scope as defined by its Charter and Board directives.
- Request information or clarifications from Board members, management, auditors, or consultants.
- Recommend the appointment, dismissal, and remuneration of external auditors and oversee their work.
- Invite company employees, including the CEO and auditors, to meetings for discussions.
- Review company records and documents.
- Hold private meetings with auditors and management.
- Engage independent advisors for investigations.
- Monitor regulatory inspections and ensure corrective actions are tracked.
- Resolve financial reporting disputes between management and auditors.
- Pre-approve all audit and non-audit services by external auditors.

3. Roles & Responsibilities of the Committee

The following represent the duties and responsibilities of the Committee:

3.1. External Auditors

3.1.1. Review and provide opinion on Company's external auditors' plan and activities, and ensure that external auditors do not provide any technical, administrative or consultative work that are beyond their scope of work;

3.1.2. Review and confirm the independence, objectivity, fairness, and effectiveness of audit activities of the external auditors by obtaining statements from the auditors on relationships between the auditors and the Company management, including non- audit services (external auditors cannot provide non-audit services, which may impair their independence and perform an audit of the Company's accounts at the same time), and discussing the relationships with the auditors, If any, taking into account the relevant rules and standards;

3.1.3. Recommend to the Board of Directors annually the nomination or dismissal of the external auditors, determine their fees and evaluate their performance, after verifying their independence and reviewing the scope of their work and the terms of their contracts in line with all applicable regulations and guidelines, considering maximum allowed term for re-appointment and rotation of the licensed partner of external audit firm; External Auditors may provide non-assurance services permitted by Saudi Organization of Chartered and Professional Accountants (SOCPA) in line with the Circular No. (000573) dated 17/08/1443H (corresponding to 20 March 2020G). Such non-assurance services include assurance engagement for Zakat, Tax and VAT compliance services, agreed upon procedures on the financial information extracted from records and financial statements, engagement to prepare reports required in relation with Sukuk, IPOs, pre-emptive rights as per CMA laws and regulations.

3.1.4. Asses and review the competencies of the external auditors and ensure that they have the necessary expertise and qualifications to prepare an objective and independent report to the Board and the shareholders;

3.1.5. On the appointment of the external auditors, the following should be discussed by the AC with the external auditors:

a) Significant accounting or auditing issues discussed with management prior to being retained as auditors.
b) The type of, and total fees, from management consultancy services.
c) The responsibility the auditors assume for other information presented with the audited financial statements.
d) The level of responsibility the auditors assume in an audit.

3.1.6. On a regular basis and at least quarterly, meet separately with the external auditors to discuss any matters that the Committee or auditors believe should be discussed privately;

3.1.7. Review the external auditor's reports and comments on the financial statements, and follow-up on the procedures taken in connection therewith;

3.1.8. Review the management letter submitted by the external auditors and Company's management responses, before submitting it to the Board for review along with the Committee's recommendations, if any;

3.1.9. Respond to queries of the Company's external auditor; and

3.1.10. Ensure the number of external auditors' nominees shall not be less than three where possible.

3.2. Financial Statements

3.2.1. Examine the quarterly and annual financial statements before presenting them to the Board and provide opinion and recommendations thereon to ensure their integrity, fairness, and transparency;

3.2.2. Provide a technical opinion, at the request of the Board, on whether the Board's report and the Company's financial statements are fair, balanced, understandable, and contain information that allows shareholders and investors to assess the Company's financial position, performance, business model, and strategy;

3.2.3. Examine any important or unfamiliar issues contained in the financial reports;

3.2.4. Accurately investigate any issue raised by the Company's Chief Strategy & Financial Officer (CSFO) or any person assuming his/her duties, Chief Compliance Officer (CCO), Chief Audit Executive (CAE), Chief Risk Officer "CRO" or external auditor;

3.2.5. Examine the accounting estimates with respect to significant matters in the financial reports;

3.2.6. Examine the Company's accounting policies and provide an opinion and recommendations to the Board thereon;

3.2.7. Review significant accounting and reporting issues, including complex or unusual transactions, highly judgmental issues, and recent professional and regulatory announcements, and understand their impact on the financial statements;

3.2.8. Review with management and the external auditors the results of the External Auditors' work, including any difficulties encountered;

3.2.9. Review with management and the external auditors all matters required to be communicated to the committee under generally accepted auditing standards;

3.2.10. Review Related Parties Transactions on post facto basis to ascertain the adequacy of disclosures in the financial statements.

3.3. Internal Control

3.3.1. Examine and review the effectiveness of the Company's Internal and financial control systems and Risk Management system.

3.3.2. Evaluate the effectiveness, efficiency and compliance with the internal controls, policies and procedures, the reporting mechanism, and make recommendation for improvements.

3.4. Internal Audit

3.4.1. Review and recommend the Internal Audit Charter for approval by the Board;

3.4.2. Recommend to the Board the appointment, reappointment, removal and acceptance of resignation of the CAE, recommend & approve his/her performance and suggest his/her remuneration;

3.4.3. Ensure that the CAE has integrity, the ability to perform his duties honestly, carefully and responsibly, and that he complies with applicable regulations and that he has not been involved in any illegal activity.

3.4.4. Review the organizational structure of the Internal Audit Group periodically and recommend the same for the approval of the Board.

3.4.5. Review that the Internal Audit Group has sufficient human resources in terms of number, qualifications and skills, particularly in specialized subjects.

3.4.6. Review and approve the 4 years' strategic plan, annual audit plan including scope and allocated budget, prepared based on the risk assessment and aligned to the Company's overall strategy and objectives and all major changes to the plan.

3.4.7. Review the quarterly internal audit activities' performance relative to the approved plan;

3.4.8. Review and approve objectives/key performance indicators of the CAE and evaluate his performance;

3.4.9. Review the effectiveness of the Internal Audit Group, including conformance with the Global Internal Audit Standards and conformance to applicable regulations;

3.4.10. On a regular basis, meet separately with the CAE to discuss any matters that the Committee or Internal Audit believe should be discussed privately;

3.4.11. Review and discuss the Internal Audit reports and ensure that executive management takes the necessary corrective action as recommended by the Internal Audit Group and follow up on the implementation of the agreed corrective measures in respect of the remarks made in such reports;

3.4.12. Review Internal Audit Group's performance to ensure that it is able to perform its responsibilities independently and objectively.

3.4.13. Review Management's response to regulatory inspection reports and management representation declared during audit activities.

3.4.14. Ensure that external independent assessment of Internal Audit activity is carried out at least once every five years.

3.4.15. Review and approve the CAE's plan for the performance of an external quality assessment and require receipt of the complete results of the assessment directly from the assessor. Approve a timeline for completion of the action plans and monitor the progress.

3.4.16. CAE should confirm to the AC on an annual basis-at least- the organizational independence of Internal Audit Group either in the annual report or in an independent letter.

3.4.17. In case if CAE disagrees with senior management or other stakeholders on the scope, findings, or other aspects of an engagement that may affect the ability of the internal audit function to execute its responsibilities, the AC should intervene with senior management or other stakeholders, in its oversight role.

3.5. Compliance

3.5.1. Approve the annual Compliance Plan;

3.5.2. Review and approve the organizational structure of the Compliance Group periodically;

3.5.3. Review details of supervisory inspection reports and quarterly progress implementation status.

3.5.4. Through the quarterly Compliance activities report, ensure the Company's compliance status with the relevant laws, regulations, policies and instructions including any issues and corrective actions and obtain regular updates from the Chief Compliance Officer on material non-compliance issues and take necessary measures to enhance Company's regulatory compliance level;

3.5.5. Review cases of compliance failure, shortcoming or negligence involving material risks, judicial procedures, supervisory penalties, financial or non-financial loss or harm for review, that are presented by the CCO;

3.5.6. Report to the Board of Directors any non-compliance related issues that are deemed necessary and provide recommendations for appropriate measures where needed;

3.5.7. Ensure that adequate policies and procedures are in place in relation to the identification and reporting of suspicious transactions from money laundering perspective;

3.5.8. Ensure that adequate whistleblowing mechanism is in place to enable Company's employees to report improper conduct or activities including protection of confidentiality, independent investigation and follow-up as per the requirements of CMA CGR article #81;

3.5.9. Review and discuss quarterly reports submitted by the Compliance Group on Whistleblowing, Anti Bribery and Corruption incidents and related cases including status and actions taken. The Audit Committee Chairman to update the Board of Directors on material whistleblowing cases;

3.5.10. Recommending Compliance policies for Board of Directors' approval, as per the DoA;

3.5.11. Review the Company's Policy for Related Party transactions, obtain a listing of all such transactions and review their approvals and reasons thereto;

3.5.12. Review and recommend to the Board of Directors the Company's policy on combating financial fraud, and to evaluate its effective implementation on regular basis;

3.5.13. Review and approve key recommendations and corrective actions proposed by the Anti-Fraud Function;

3.5.14. Ensure that a mechanism is established by Anti-Fraud Function to follow up on the recommendations and corrective measures proposed by the Anti-Fraud Function;

3.5.15. Review and discuss significant fraud cases, types of fraud, analysis and statistics on fraud cases and relevant preventive/control measures to be implemented; and

3.5.16. The Committee shall authorize Anti-Fraud Function within the Company to conduct investigations in matters related to its roles with any of the Company's employees, at any level, in coordination with the Compliance Committee, and to access all relevant information and documents necessary to achieve the objectives of the investigation, while ensuring confidentiality of such information.

3.6. Risk Management

3.6.1. Review periodic Board Risk Committee meetings' minutes;

3.6.2. Review, on quarterly basis reports received from Risk Management Group, prepared based on the results of independent, ongoing risk assessments;

3.6.3. Review and challenge management on IFRS 9 judgements, processes and controls; and

3.6.4. The AC Chairman shall meet on annual basis with the Chairman of the Board Risk Committee to exchange notes on the management of risk.

3.7. Reporting Responsibilities

3.7.1. The Chairman of the Audit Committee shall apprise the Board of Directors on quarterly basis of the activities of the Committee.

3.7.2. The Audit Committee shall annually submit a report to the Board & shareholders, describing the Committee's composition, responsibilities and how they were discharged, and any other information required by policy or law, including approval of non-audit services and the Committee's opinion and recommendations on the adequacy of the internal and financial control systems and risk management systems. Sufficient copies of such report shall be available at Company's head office, and published on Company's and the Exchange's websites when publishing the invitation to convene the General Assembly. Summary of the report shall be read at the General Assembly.

3.8. Other Responsibilities

3.8.1. Develop at the end of each year an annual schedule of the Committee's activities for the coming year. This includes the Committee's periodic meetings, meetings with management, and other activities in light of the Committee's roles and responsibilities defined within the Charter;

3.8.2. Review & approve previous Committee minutes of meeting and follow up on decisions taken and documented in the action sheet of prior Committee meetings in order to ensure that reported issues have been resolved;

3.8.3. To ensure the adequacy and effectiveness of system of controls for Safeguarding of the Company's assets;

3.8.4. Conduct an annual self-assessment relative to the Committee's purpose, duties, and responsibilities outlined herein as well as those of its individual members. The purpose is to evaluate and ensure that all responsibilities outlined in this Charter have been carried out; and

3.8.5. Review, on quarterly basis all material litigation the status of all significant legal matters

4. Composition of the Committee

4.1. Membership

4.1.1. Members of the Committee are appointed by the Board of Directors after obtaining CMA's written "No-objection".

4.1.2. The Committee shall be formed by a resolution of the Company's Board of Directors, and the members of the Committee can be from the shareholders or others, provided that all members are independent.

4.1.3. The Committee shall be comprised of at least three (3) members and shall not exceed five (5) members. At least one (1) member shall be specialized in finance and accounting.

4.1.4. The Committee members from outside the Board shall be more than those from inside the Board.

4.1.5. It is preferable that a member is not a member in more than two committees;

4.1.6. Members of the Committee should be independent in line with the definition of the independent member as defined in CMA Corporate Governance Regulations.

4.1.7. Any person who works or has worked in the Company's Finance Division, the Executive Management or for the Company's external auditor during the preceding two years may not be a member of the Audit Committee.

4.1.8. The Chairman of the Board shall not be a member of the Audit Committee.

4.1.9. A member of Company's audit committee should not be serving as an Audit Committee member in more than five (5) listed joint-stock companies at the same time.

4.1.10. The CMA shall be notified with the names of the members and the types of their memberships within five (5) working days from their appointment, and shall be notified of any changes in the Committee's membership within five (5) working days of the date of such changes.

4.1.11. The committee member must work with a sense of intent with the necessary care and attention to benefit the stakeholders in addition to performing his/her duties away from any external influence, whether from within or from outside the Company, and he/she must not provide personal reconciliation or the interests of those he represents to the interests of the Company, shareholders and other stakeholders.

4.2. Term of Committee Members

4.2.1. The term of the Committee members is equivalent with that of the Board, where the Committee members are elected for a period of three (3) years.

4.3. Appointment of the Chairman

4.3.1. With the majority voting, Board members shall appoint an independent member as the Chairman for the Committee;

4.3.2. Chairman of the Committee must always be a member of the Board of Directors and should be independent from the Executive Management and major shareholders of the Company;

4.3.3. Chairman of the Committee should not be related to other members of the Board or have any financial or business relationship with any members of the Board;

4.3.4. The Chairman of the Committee should not have a relationship with executive directors or key executives of the Company that could affect his/her independence;

4.3.5. The Chairman of the Committee can designate any Committee member as a Vice Chairman for the purpose to Chair the Committee meetings in his/her absence; and

4.4. Roles & Authority of the Chairman

4.4.1. Oversee the planning and preparations for the Committee meetings, including approving the agenda of the meetings;

4.4.2. Ensure that appropriate information from management are presented to the Committee during the meeting to enable the Committee to exercise their accountabilities based on sufficient information;

4.4.3. Ensure that all items requiring the Committee's approval and recommendations to the Board are appropriately tabled;

4.4.4. Ensure proper flow of information to the Committee and review the adequacy and timing of documentary materials in support of management's proposals;

4.4.5. Oversee reporting and verbal presentations to the Board from the Committee;

4.4.6. Oversee the annual assessment of the Committee's performance; and

4.4.7. Attend the General Assembly Meetings and answer any questions raised by the shareholders.

4.5. Secretary of the Committee

The Committee should appoint a Committee Secretary whose term of service is the same as that of the Committee (with the right of reappointment), and it is preferable that the Committee secretary is not the secretary of other Committees, and is responsible for the following:

4.5.1. Acting as a primary point of contact and source of information and advice for Committee members on Company's relevant activities, in order to support the decision-making process;

4.5.2. Staying fully aware of the Committee's activities, and ensuring the Committee members take decisions after being provided with the necessary briefings and information/documents;

4.5.3. Maintaining the Committee's Charter, and guiding the Committee to carry out its activities in compliance with the Charter;

4.5.4. Preparing communication letters, in coordination with the Committee's Chairman as the need arise, and addressing the same to Committee members, Board of Directors and relevant parties. This includes handling the required communications to schedule/call for Committee meetings;

4.5.5. Preparing the Committee's reporting packs that should be circulated to all Committee members with the meeting agenda at least five (5) calendar days prior to the meeting date;

4.5.6. Attending Committee meetings for the objective of preparing the minutes of meeting and circulating the said minutes within a period not exceeding ten (10) working days to all Committee members for approval;

4.5.7. Documenting and following up on issues requiring action as reported in subsequent Committee meetings and recorded in the related meeting action sheet;

4.5.8. Arranging with the parties that the Committee invites to the Committee meetings. This includes Senior Management, External Auditors, consultants, legal advisors, or any other party;

4.5.9. Arranging and following up on the completion of the Committee's annual self- assessment;

4.5.10. Circulating Committee decisions to the concerned parties;

4.5.11. The Secretary shall ensure that meetings are properly documented and the minutes are retained for a minimum of ten (10) years with relevant materials; and

4.5.12. Keeping the Committee members abreast of the latest developments/changes in relevant regulations/laws from the different regulators (CMA), and informing them about any relevant communication from the regulators.

4.6. Qualifications of the Committee Members

4.6.1. Committee members collectively shall be knowledgeable of the matters presented to the Committee, have relevant work experience and appropriate qualifications and have a thorough understanding of the roles and responsibilities of the Directors and Executive Management. The Committee shall be able to devote adequate time to their duties as members of this Committee;

4.6.2. Each member should have academic qualifications, professional experience in auditing, finance, or risk management and relevant knowledge of accounting standards and auditing standards, and the capacity to read financial reports and understand related rules and regulations issued by regulators; and

4.6.3. The committee shall have the competence to monitor the financial institution's work, verify the integrity and impartiality of its reports and financial statements, and ensure the availability of internal control systems therein.

4.7. Compensation of the Committee Members

4.7.1. Committee members are entitled to receive compensation as per Remuneration Policy approved by the General Assembly;

4.7.2. Committee members who are residents in a city outside the meeting location are entitled to all out of pocket expenses incurred to attend the meeting. Such expenses include, first class tickets as well as any accommodation and transportation expenses incurred by them; and

4.7.3. The Board of Director's Report that is presented to the General Assembly shall disclose the remunerations and other payments made to the Committee members.

4.8. Resignation & Replacement of Committee Members

4.8.1. The Office of a member of the Committee shall be vacated:

a) If the person holding it resigns his/her office or dies;

b) If the person at any time has been Company bankrupt or insolvent, or compounds with his/her creditors or suspends payment;

c) If the person is facing mental challenges, or become rationally unfit;

d) If the person has been absented from three (3) consecutive meetings or five (5) non-consecutive meetings of the Committee, as the case may be, or from all such meetings for a continuous period of six (6) months, whichever is longer, without leave of absence from the Committee concerned, or without good cause; and

e) If the person is subject to any of the disqualifications mentioned in the Company's bylaws.

4.8.2. Any Committee member may resign upon giving written notice to the Chairman of the Committee and the Chairman of the Board and the resignation shall be effective at the time such notice is given (unless the notice specifies a later time for the effectiveness of the resignation); and

4.9. Conflict of Interest

4.9.1. All members of the Committee must follow the policies, standards and procedures on conflict of interests as stipulated in the "Conflict of Interest Policy", and the Company's Code of Conduct for Board and Board Committees' Members; and

4.9.2. No Committee member shall simultaneously serve on any Committee of a competitor of Company or have any role in any of the organization's competitors. Furthermore, no member shall have any significant contractual or business relationship with Company that could be seen as materially impairing his/her capacity to act in an independent manner.

4.10. Confidentiality of Information

4.10.1. In discharging their responsibilities, Committee members shall maintain the confidentiality of their activities, and shall exercise their business judgment to act in a manner that they believe is in the best interest of Company; and

4.10.2. Committee members shall maintain the confidentiality of the Company trade secrets gained through performing their duties and shall not publicize confidential information to shareholders as per the Control of Insider Information Policy. Not conforming to this, the member shall be dismissed from the Committee and can be held responsible for the financial damages caused by such announcements.

5. Meetings of the Committee

5.1. Frequency of Meetings

5.1.1. The Committee shall meet at least four (4) times a year preferably on quarterly basis. Additional meetings may be scheduled as the Committee or its Chairman deem advisable; provided that a notice of five (5) working days, or shorter time period as per the consent of the Committee members, is given.

5.1.2. The Committee shall convene periodically with Company's external auditor and CAE.

5.1.3. The CAE, the external auditor, CCO, BoD Chairman or any member of the Committee may call for a meeting with the Audit Committee at any time as may be necessary.

5.2. Quorum of Meetings

5.2.1. A quorum at any Committee meeting shall consist of a majority of the Committee members.

5.3. Attendance Guidelines

5.3.1. Committee members are expected to attend all Committee meetings and in case a member was absent, his/her absence should be documented in the minutes of the meeting;

5.3.2. Committee members may request a leave of absence from the Chairman of the Committee or may provide justifiable reasons/causes for not attending a Committee meeting; and

5.3.3. Other than the Committee members and Secretary, no other Board member or the Executive Director may attend the meetings of the Committee unless the Committee requests his/her opinion or advice.

5.4. Invitees

5.4.1. Besides the attendance of the members comprising the Committee, the attendance of non-Committee members, such as members of management and external/internal auditors, is conditional upon the request and approval of the Committee's Chairman. Non- Committee members will be involved in the discussions but will not have any voting rights; and

5.4.2. The request for attendance of non-Committee members is to be suggested and indicated in the meetings' agendas circulated prior to meetings' dates.

5.5. Agenda of the Meeting

5.5.1. The Secretary of the Committee shall be responsible for drafting the meetings' agendas. These agendas should be approved by the Committee's Chairman. The Committee's Chairman can

consult with the Committee members on the meeting's agenda whenever he/she deems necessary; and

5.5.2. An agenda, together with relevant materials relating to each meeting, shall be sent to members of the Committee five (5) calendar days prior to each meeting. 5.8.5. The approved minutes shall be retained for a period of no less than ten (10) years;

5.6. Meeting Methods

5.6.1. The Committee may meet personally or via telephone or video conference.

5.7. Voting Guidelines

5.7.1. The voting of the Committee is determined by the majority of the members, and the invitees to the meeting have no voting rights on the resolutions.

5.7.2. In the event of equal voting, the Chairman of the Committee has a casting vote.

5.7.3. No voting by proxy shall be permitted.

5.8. Minutes of Meetings

5.8.1. The deliberations and resolutions of the Committee should be recorded in the minutes of meetings which must be circulated to all Committee members within a maximum period of ten (10) working days. The Committee members shall approve or provide any comments they may have. If no response is received from any Committee member within ten (10) working days from the date of circulation, the minutes will be deemed as approved;

5.8.2. A copy of the minutes of meetings should be signed by chairman and all members present at the meeting as well as the committee secretary and the names of absent members should be recorded;

5.8.3. It is permissible to use modern technology to sign, record deliberations and decisions, and record the Minutes;

5.8.4. All objections and abstentions from voting should be recorded in the minutes along with decisions that has been determined by the use of the Chairman's casting vote;

5.8.5. The approved minutes shall be retained for a period of no less than ten (10) years;

5.8.6. The minutes shall be submitted to members of the Board who have the right to request a clarification for any issue from the Committee; and

5.8.7. If the Committee has obtained assistance from any experts or specialists, whether internal or external, such assistance is included in the minutes; stating name of the expert and his relation with the Company or its Executive Management, if any.

5.9. Decisions by Circulation

5.9.1. The Committee may take decisions by circulation unless a member request in writing to discuss the circulated matter in a meeting;

5.9.2. A decision shall be issued if approved in writing (physically or by email) by the majority of the Committee members; and

5.9.3. All approved resolutions taken by circulation shall be recorded in the next meeting minutes.

6. Relationship with Others

6.1. Communication between the Committee and other committees should be clear to ensure a common understanding of the respective responsibilities of each committee; and

6.2. The Committee may coordinate with other Board and Management Committees, if appropriate, on any area as required to support the effectiveness and efficiency of the functioning of these Committees.

7. Amendment to the Charter

This Charter is subject to regular review, at least once in 3 years, for enhancement and keeping it abreast with the relevant laws and regulations updates, and according to the discretion of the Board.